

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.2166	0.2044	0.0265	0.2751	0.2623
Trial Fee-Shifting	0.2119	0.1769	0.0475	0.2741	0.2359

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.2592	0.2592	0.0107	0.3506	0.3356
Trial Fee-Shifting	0.2112	0.1705	0.0187	0.2804	0.1812